

LEASE ASSIGNMENT AND AMENDMENT AGREEMENT

THIS LEASE ASSIGNMENT AND AMENDMENT AGREEMENT (this "Lease Assignment") is entered into and effective as of June __, 2020 (the "Effective Date") by and among THE COOKIE PLACE, INC., an Alabama corporation (the "Assignee"), TYE HEBERT INVESTMENTS, L.L.C., a Louisiana limited liability company (the "Assignor"), and BELLE REALTY OF LAFAYETTE, L.L.C., a Louisiana limited liability company (the "Landlord").

RECITALS:

A. Assignor, as tenant, and Landlord, as landlord, are parties to that certain Lease Agreement dated April 1, 2007, as amended by First Addendum to Lease Agreement dated January 29, 2010, Second Addendum to Lease Agreement dated March 8, 2013, Third Addendum to Lease Agreement dated February 26, 2016 and Fourth Addendum to Lease Agreement dated March 4, 2019 (collectively, the "Lease"), for the lease of certain premises in The Boulevard Shopping Center at 107 Arnould Boulevard, Lafayette, Louisiana (the "Premises").

B. Assignor and Assignee are parties to that certain Purchase and Sale Agreement dated as of the date hereof (the "Purchase Agreement") under which Assignor has agreed to assign its interest in the Lease to Assignee, and this Lease Assignment is the Assignment referenced in and executed pursuant to the terms of the Purchase Agreement.

C. In accordance with the Purchase Agreement, Assignor desires to assign to Assignee all its rights, title and interest in and to the Lease, and Assignee desires to accept such assignment and to assume all Assignor's obligations under the Lease arising from and after the date hereof pursuant to the terms set forth herein.

D. Landlord desires to consent to and approve the assignment of the Lease to Assignee, and Assignee and Landlord desire to amend the Lease pursuant to the terms set forth herein.

NOW, THEREFORE, in consideration of the premises and the covenants and agreements hereinafter set forth, and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties hereby agree as follows:

1. **ASSIGNMENT AND ASSUMPTION OF LEASE.** Assignor does hereby transfer, sell, convey and assign unto Assignee all of Assignor's right, title and interest in and to the Lease and the Premises as of the Effective Date. Assignee hereby accepts the foregoing transfer and assignment of the Assignor's rights, title and interest in and to the Lease and assumes and agrees to perform all obligations and liabilities of Assignor under the Lease arising from and after the Effective Date.

2. **DISCLAIMER.** The Assignee hereby disclaims any obligation respecting, and shall not assume, pay, discharge or be responsible for, any liabilities, claims, actions or obligations of any nature arising under the Lease at any time prior to the Effective Date (collectively, the "Prior Obligations").

3. **CONVEYANCE GOVERNED BY PURCHASE AGREEMENT.** This Lease Assignment is made pursuant to, and is subject to the terms of, the Purchase Agreement as to any matter or dispute between Assignor and Assignee. Notwithstanding anything to the contrary contained in this Lease Assignment, nothing contained herein shall be deemed to supersede, limit, restrict or modify in any manner the rights and obligations of the parties under the Purchase Agreement, and in the event of a conflict between the terms and provisions hereof and the terms and provisions of the Purchase Agreement, the terms and provisions of the Purchase Agreement shall control as between Assignor and Assignee. Assignor and Assignee agree that this Lease Assignment is executed and delivered to implement the Purchase Agreement, without recourse and without representation or warranty by either party, whether express, implied or created by operation of law, except as provided in the Purchase Agreement, and is not intended

to enhance, modify or decrease any of the rights or obligations of Assignor, Assignee or their respective affiliates from those contained in the Purchase Agreement. In the event either Assignor or Assignee has a claim against or dispute with the other party relating to the terms or subject of this Lease Assignment, Assignor and Assignee agree that such claim or dispute will be subject to, and governed by, the provisions and procedures set forth in the Purchase Agreement.

4. LANDLORD CONSENT AND ACKNOWLEDGEMENTS. Landlord hereby consents to and approves the assignment of the Lease to Assignee pursuant to the terms hereof and agrees that from and after the Effective Date, it will recognize Assignee as tenant under the Lease. Landlord hereby represents and warrants to Assignor and Assignee that the Lease is in full force and effect, neither Landlord nor Assignor is currently in default under the Lease, and Assignor has paid all rents and other amounts due Landlord under the Lease through the Effective Date. Landlord acknowledges and agrees that (a) Assignee shall be entitled to exercise all rights as tenant under the Lease and shall pay and perform all obligations and liabilities of tenant under the Lease arising from and after the Effective Date (the "Post-Assignment Obligations"); (b) Assignor shall remain liable for all Prior Obligations, but Landlord releases and discharges Assignor and its owners, managers, officers, agents, employees, successors and assigns from all Post-Assignment Obligations; and (c) Assignee shall not assume, pay, discharge or be responsible for any of the Prior Obligations.

5. AMENDMENT OF LEASE. Assignee and Landlord hereby amend the Lease by adding the following option in favor of Assignee, as lessee under the Lease from and after the Effective Date ("Lessee"), to extend the term of the Lease upon expiration of the "Fifth Renewal Term" (as defined under the Lease):

Provided that the Lessee is not in default in the performance of the Lease, Lessee shall have one (1) option to extend the Lease for an additional three (3) year term commencing on the day immediately following the expiration of the Fifth Renewal Term (the "Sixth Renewal Term"). All of the terms and conditions of the Lease, as amended by the First, Second, Third and Fourth Addenda thereto and this Lease Assignment, shall apply during the Sixth Renewal Term, except that the monthly rental amount shall be negotiated between Lessee and Lessor (and any increase in such rental amount shall be consistent with the rent increases for the preceding renewal terms).

This option to renew shall be exercised by written notice given to Lessor by Lessee not less than sixty (60) days prior to the expiration of the Fifth Renewal Term. If notice is not given in the manner provided herein and within the time specified, the option granted herein shall terminate.

6. COUNTERPART EXECUTION; AMENDMENT. This Agreement may be executed in multiple counterparts and delivered by facsimile or electronic mail and, when so executed and delivered, each of which shall be deemed an original and all of which together shall constitute one and the same instrument. The provisions of the Lease Assignment shall not be modified or amended except by an instrument in writing signed by all parties hereto.

[Signatures on Following Page]

IN WITNESS WHEREOF, the parties hereto have executed this Lease Assignment as of the date first written above.

TYE HEBERT INVESTMENTS, L.L.C.

By: Anjalex Investments, LLC
Its Member

By: _____

John Duvieilh, Executor of the Estate of
Robert Dunn
Its Sole Member

LAFAYETTE COOKIES AND CREAM, LLC

By:

Name:

Its:

BELLE REALTY OF LAFAYETTE, L.L.C.

By: 

Name: *Adam Abdalno*

Its: *Authorized Representative*